Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM05
HON. Judge Ebrahim Baytieh

Date: 9/2/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	McKeown-Trust 30-2024-01421537	**MOTION TO STAY (ROA 38)** Respondent Puna Nair ("Respondent") moves pursuant to Code of Civil Procedure section 128 and the Fifth Amendment of the U.S. Constitution to stay the instant action until the resolution of her criminal case. The motion is **DENIED**. Every court has the power to provide for the orderly conduct of proceedings, including the power to stay a civil action or discovery pending outcome of a related criminal case. (Code Civ. Proc. § 128(a)(3).) A stay is permissible when there are pending civil and criminal proceedings which "**arise out of the same or related transactions**." (*Pacers, Inc. v. Superior Court of San Diego County* (1984) 162 Cal.App.3d 686, 690 (*Pacers*), emphasis added.) "Courts that are confronted with a civil defendant who is exposed to criminal prosecution **arising from the same facts** 'weigh the parties' competing interests with a view toward accommodating the interests of both parties, if possible.'" (*Fuller v. Superior Ct.* (2001) 87 Cal.App.4th 299, 307, citing *Pacers*, *supra*, 162 Cal.App.3d at 690, emphasis added.) The factors to be considered in whether to grant a stay due to pending criminal proceedings are: (1) the extent to which defendants' 5th Amendment rights are implicated; (2) the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (3) the burden which any particular aspect of the proceedings may impose on defendants; (4) the convenience of the court in the management of its cases, and the efficient use of judicial resources; (5) the interests of persons not parties to the civil litigation; and (6) the interest of the public in the pending civil and criminal litigation." (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 885 ("*Avant!*"), citing *Keating v. Office of Thrift Supervision* (9th Cir. 1995) 45 F.3d 322, 324.) Here, the court need not reach the factors set forth in *Avant!* because Respondent has not shown that the instant probate proceeding and the criminal action arise out of the same or

		related transactions or from the same facts. In support of this motion, Respondent offers a short declaration of counsel which states only that Respondent is facing criminal charges based on "**similar** factual allegations." (ROA 38, Bohm Decl., ¶ 3, emphasis added.) The Petition (ROA 2) in the instant action alleges causes of action against Respondent for undue influence, financial elder abuse, and intentional interference with expected inheritance. Such causes of action concern Respondent's actions toward the decedent with regard to the decedent's estate plan. The criminal action involves insurance fraud which (presumably) concerns Respondent's actions toward the insurance company with regard to decedent's insurance policy. While the two actions might concern "similar" facts (e.g., they both involve allegations of moral turpitude), Respondent has not shown that they involve the same or related transactions or facts. Furthermore, since Respondent has not offered any information as to the facts involved in the criminal proceeding, the court cannot begin to weigh the first and third factors of *Avant!* as set forth above. In her Reply, Respondent argues that Petitioner's discovery evidences an overlap between the two actions. However, the discovery appears to seek information relevant to the instant motion to stay. The discovery might also reveal that Petitioner intends to use the evidence obtained in the criminal action in the instant probate proceeding. However, such is not grounds to stay the instant probate proceeding. Respondent also argues in Reply that Petitioner has failed to show prejudice resulting from a stay. However, Petitioner does not have the burden to make such a showing. Moving party bears the initial burden to prove entitlement to the relief requested. (Evid. Code § 500.) Respondent has not met that burden. Counsel for Petitioner is ordered to give notice of this ruling. .
2	Worthy-Trust 30-2021-01211884	**MOTION TO BE RELIEVED AS COUNSEL (ROA 631)** Attorney Stephen P. Shepard seeks to be relieved as counsel for Susan K. Worthy. An attorney’s right to withdraw as counsel is conditioned upon compliance with California Rules of Court, rule 3.1362. When representing an estate representative or other fiduciary,

		withdrawal is further conditioned upon compliance with Orange County Local Rule 601.21. Counsel has fully complied with California Rules of Court, rule 3.1362 and does not represent a fiduciary. On 1/27/26, Susan K. Worthy filed an Objection to this motion. While Ms. Worthy appears to have many grievances with regard to Mr. Shepard's representation of her, such grievances only further support the need to end the attorney-client relationship. Moreover, Ms. Worthy's objections appear to be primarily against the statements made in the moving papers. She does not appear to object to Mr. Shepard being relieved as counsel. Ms. Worthy further requests that the court order Mr. Shepard to turn over the client file to her in paper format, as opposed to the flash drive she has already received. Pursuant to California Rules of Professional Conduct, rule 1.16(d), Mr. Shepard must return the client file to the client in the format in which it exists. To the extent the client file was maintained in paper format, the physical papers should be handed over to the client. To the extent the client file was maintained electronically, the flash drive is sufficient. Mr. Shepard is not required to print any electronic documents at his own expense for the client's convenience. Based on the foregoing, the court finds good cause to **GRANT** the motion to be relieved. Withdrawal is effective upon filing the proof of service of the signed Order Granting Attorney's Motion to Be Relieved as Counsel. .
3	Rodman-Trust 30-2025-01499532	**MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (ROA 51)** Petitioner Kevin Craige Kruse moves for an order compelling Respondent Kara Kruse Lee to provide further responses to Requests for Production of Documents, Set One, demand nos. 5, 6, and 17. Respondent has filed a declaration demonstrating that supplemental responses were served on 8/20/26. (ROA 122.) The supplemental responses appear to comply with the Code, rendering the motion to compel moot.

		Pursuant to California Rules of Court, rule 3.1348(a), the subsequent service of sufficient discovery responses does not render Petitioner's request for monetary sanctions moot. The court notes that the instant motion is largely duplicative of the motion heard on 8/19/26 (ROA 39). Thus, the court reduces the award of sanctions requested to $1,272.00 ($424 p/h x 3 hours). The motion to compel is **DENIED as moot**. The request for sanctions is **GRANTED**. The court imposes reasonable sanctions of **$1,272.00** jointly and severally against Respondent and her counsel of record, Jeany Duff, payable to Hamilton & Associations, APC within 30 days of notice of this ruling, extended for method of service, or any later date as agreed upon by the parties in writing. Counsel for moving party is ordered to serve notice of ruling.
4	Conrecode-Trust 30-2025-01503820	**DEMURRER (ROA 15)** More than one individual involved in this case share a surname. For clarity, the court is using first names without intending any disrespect. (*Morgan v. Superior Court* (2018) 23 Cal. App. 5th 1026. fn.1) Trustee Emmett S. Conrecode (the "Trustee") demurrers to the "Petition Concerning the Internal Affairs of a Trust" (ROA 2) filed by Petitioner Virginia Estate & Trust Law, as successor trustee of the Edward J. Conrecode Revocable Trust, ("Petitioner") in its entirety for lack of standing. The demurrer is **OVERRULED**. The Petition alleges the following pertinent facts: - Edward J. Conrecode, Sr. ("Edward, Sr.") was the trustor of the Edward J. Conrecode Trust dated 4/10/89 and amended 6/28/90 (the "Subject Trust"); - The Subject Trust owned real property located in Costa Mesa, California (the "Property"); - The Subject Trust provides that upon Edward, Sr.'s death, the assets of the Subject Trust shall be equally distributed to the Trustee, Edward J. Conrecode, Jr. ("Edward, Jr."), and James M. Conrecode ("James"). - The Subject Trust provides that "**if <u>all</u>** of the Trustor's children and their issue should die prior to the final distribution of the Trust Estate, all the Trust Estate not disposed of" shall be distributed by intestate succession;

- Edward, Sr. died on 11/9/94;

- James died 1/21/17;

- Edward, Jr. died on 11/8/24;

- Edward, Jr. was the trustor of the Edward J. Conrecode Revocable Trust dated 10/31/24 (the "EJC Trust");

- Petitioner is the successor trustee of the EJC Trust; and

- The Trustee has refused to distribute Edward, Jr.'s share of the trust assets to the EJC Trust because the Trustee claims that he is entitled to all of the trust assets since Edward, Jr. and James did not survive final distribution.

The Petition requests that the court ascertain whether the EJC Trust is a beneficiary of the Subject Trust as the successor in interest to Edward, Jr.

Attached as Exhibits to the Petition (ROA 2) are copies of the EJC Trust, a Schedule of Assets for the EJC Trust, and Edward, Jr.'s will.

The Schedule of Assets for the EJC Trust lists any interest that Edward, Jr. had in the Property, as well as any interest Edward, Jr. had in the Subject Trust. Edward, Jr.'s will is a pour over will, pouring the residue of his estate into the EJC Trust.

In this demurrer, Trustee argues that Petitioner has no standing because Petitioner is only a successor trustee of the EJC Trust and is not a Trustee or beneficiary of the Subject Trust. Trustee appears to misconstrue the basis of Petitioner's interest in the Subject Trust.

On the facts alleged, Edward, Jr. became a vested beneficiary of the Subject Trust when Edward, Sr. passed away (as did James). The EJC Trust is a successor in interest to Edward, Jr. (Code Civ. Proc. § 377.11.) Petitioner's standing is based on its status as the trustee of the EJC Trust which is the successor in interest to Edward, Jr. who was a vested beneficiary of the Subject Trust.

Further, pursuant to section 3.03(b) of the Subject Trust, the assets pass through intestate succession only if "all" of Edward, Sr.'s children and their issue die before final distribution. Trustee is a child of Edward, Sr. who is still living and the final distribution of the Trust has not happened (even though Edward, Sr. died over 30 years ago). Thus, section 3.03(b) is inapplicable.

		The issue before the court pursuant to the Petition is whether the EJC Trust is entitled to Edward, Jr.'s share of the trust at final distribution. Petitioner has standing to bring such petition before the court as a successor in interest to a beneficiary (i.e., as successor in interest to Edward, Jr.) Furthermore, Petitioner has standing to bring the Petition as an "interested person" under Probate Code section 48. In the recent case of *Hamlin v. Jendayi* (2024) 105 Cal.App.5th 1064, the court rejected the idea that only a beneficiary or trustee of a trust can bring a petition under Probate Code section 17200. It summarized standing in probate proceedings, as follows: > We begin with the general observation that standing for purposes of the Probate Code is a fluid concept dependent on the nature of the proceeding before the trial court and the parties' relationship to the proceeding, as well as to the trust (or estate)." (*Arman v. Bank of America* (1999) 74 Cal.App.4th 697, 702–703, 88 Cal.Rptr.2d 410.) In general, " '[t]o have standing, a party must be beneficially interested in the controversy, and have "some special interest to be served or some particular right to be preserved or protected." [Citation.] This interest must be concrete and actual, and must not be conjectural or hypothetical.' " (*Limon v. Circle K. Stores, Inc.* (2022) 84 Cal.App.5th 671, 699, 300 Cal.Rptr.3d 572.) Interested persons have legal standing to contest the provisions of a trust. (*Schwan v. Permann* (2018) 28 Cal.App.5th 678, 698, 239 Cal.Rptr.3d 427.) The Probate Code defines " 'interested person' " broadly as including an "[a]n heir, devisee, child, spouse, creditor, beneficiary, and any other person having a property right in or claim against a trust estate or the estate of a decedent which may be affected by the proceeding" (§ 48, subd. (a)), and its meaning "may vary from time to time and shall be determined according to the particular purposes of, and matter involved in, any proceeding" (id., subd. (b)). [. . .] Consequently, the probate court "has flexibility in determining whether to permit a party to participate as an interested party" and may give standing to " 'anyone having an interest in an estate which may be affected by a probate proceeding." ' (*Estate of Sobol* (2014) 225 Cal.App.4th 771, 782, 170 Cal.Rptr.3d 569 (Sobol).)

		(*Id*. at p. 1074.) Here, the EJC Trust, as successor in interest to Edward, Jr., is asserting a claim against the Subject Trust for Edward, Jr.'s vested interest therein. Moreover, the EJC Trust will be affected by the court's determination of whether the EJC Trust is entitled to Edward, Jr.'s vested interest in the Subject Trust. Based on the foregoing, the court finds that the Petition alleges facts sufficient to establish Petitioner's standing to seek the relief requested. The court makes **no finding on the merits** of the Petition. The Trustee **shall** file and serve a responsive pleading to the Petition (ROA 2) within 10 days of notice of this ruling, extended for method of service. Counsel for Petitioner is **ordered** to serve notice of ruling.